

Judgment Sheet
IN THE LAHORE HIGH COURT LAHORE
JUDICIAL DEPARTMENT

Criminal Appeal No.17383-J of 2020
(Afzaal & 2 others v. The State)
and
Criminal Revision No.17382 of 2020
(Maqsood Ahmad v. Zulfiqar Ali & 3 others)

JUDGMENT

Date of hearing: 13.02.2026

Appellants by: M/S Nighat Saeed Mughal & Humayun Rashid, Advocates.

State by: Ms. Sumara Shafi, Deputy District Public Prosecutor.

Complainant by: Mr.Akhtar Saeed Bhatti, Advocate

ABHER GUL KHAN, J. The appellants Afzaal, Muhammad Imran and Zulfiqar Ali along with co-accused Sarfraz Ahmad involved in case FIR No.87/2015 dated 19.03.2015 registered under Sections 302,109,148 & 149 PPC at Police Station Satghara, Okara, were tried by learned Additional Sessions Judge, Okara. Trial court *vide* judgment dated 20.02.2020 acquitted the afore-said co-accused; however convicted and sentenced the appellants in the following terms:-

(i).Under Sections 302(b)/149 PPC to suffer imprisonment for life as ta'zir with the direction to pay compensation of Rs.5,00,000/- each to the legal heirs of the deceased Rukhsana Bibi under Section 544-A Cr.P.C. and in default whereof to further undergo simple imprisonment for six months.

(ii).Under Section 148 PPC to suffer rigorous imprisonment for three years along with fine of Rs.10,000/- and in default whereof to further undergo simple imprisonment for one month.

Both the sentences were ordered to run concurrently and benefit of Section 382-B Cr.P.C. was extended to the convicts.

Challenging their conviction and sentence the appellants Afzaal, Muhammad Imran and Zulfiqar Ali filed Criminal Appeal No.17383-J of 2020 while the complainant Maqsood Ahmad (PW.4) filed Criminal Revision No.17382 of 2020 seeking enhancement of sentence of Afzaal, Muhammad Imran and

Zulfiqar Ali (respondents No.1 to 3). Both these matters are being decided through this single judgment.

2. The case of the prosecution, as delineated in the FIR (Exh.PE/1) lodged by Maqsood Ahmad (PW.4) is that his real sister, Mst.Rukhsana Bibi, was married to Muhammad Aslam approximately 7/8 years prior to the occurrence in question. From the said wedlock, two daughters were born. Muhammad Aslam subsequently died and thereafter Mst.Rukhsana Bibi continued to reside at her matrimonial home. About 4/5 months after the demise of her husband, the accused namely Zulfiqar and Sarfraz, extended threats to her life and dispossessed her from the house. Consequently, she instituted FIR No.395/2014 under Sections 380, 506-B, 148 & 457 PPC at Police Station Satghara against the said accused. On 19.03.2015, the complainant, accompanied by Mst.Rukhsana Bibi, proceeded to the District Courts, Okara, for the attestation of the inheritance mutation in favour of the deceased in respect of her late husband's property. Thereafter, while returning therefrom and upon reaching the vicinity of Ahata Karam Chand on a metaled road, the accused namely Zulfiqar Ali, Afzaal and Imran, each armed with .30 bore pistols, confronted them. Accused Zulfiqar raised Lalkara to commit the murder of Mst.Rukhsana Bibi for not handing over the property of Aslam to them and made a fire shot with his pistol which hit her below the right shoulder, whereupon Mst.Rukhsana Bibi ran towards Ahata Karam Chand to save her life but the accused chased her and Afzaal accused fired a shot which landed on her right buttock while Imran accused fired a shot which hit at her left buttock, due to which she fell down. Thereafter Zulfiqar fired three shots repeatedly which landed on her abdomen. Zulfiqar also fired shots which hit at her right cheek and chin whereas the accused Afzaal fired shot which landed on her left knee joint. Imran accused made fire shot which hit Mst.Rukhsana Bibi on her right upper arm. Afzaal accused fired shot hitting her on left side of abdomen and then Zulfiqar accused made fire shot hitting at her left thigh upon

which she succumbed to the injuries. Besides that, two unknown accused made aerial firing. Meanwhile PWs Munir Ahmad and Safdar came at the spot and witnessed the incident. Allegedly, the incident occurred at the abetment of co-accused Sarfraz. The motive for the incident was that Muhammad Aslam, husband of the deceased Mst.Rukhsana Bibi, had passed away. The accused, Zulfiqar and others, who were his stepbrothers, sought to take away Muhammad Aslam's land from Mst.Rukhsana Bibi. When the inheritance mutation was officially sanctioned in favor of Mst.Rukhsana Bibi, the accused committed the murder of Mst.Rukhsana Bibi.

3. After the occurrence, the complainant, Maqsood Ahmad (PW.4) submitted a written application (Exh.PE) before Ihsan-ul-Haq, ASI (PW.2), on the basis of which the formal FIR (Exh.PE/1) was registered. Subsequently, the investigation was entrusted to Muhammad Aslam, SI (PW.12), who on 19.03.2015 visited the scene of the occurrence. At the instance of the complainant and other witnesses, he prepared an unscaled site plan (Exh.PK) inspected the dead body, secured blood-stained earth through memo (Exh.PL) and prepared the injury statement (Exh.PC), inquest report (Exh.PB) and application for postmortem examination (Exh.PD). The body of deceased was then handed over to Dost Muhammad 826/C for autopsy at DHQ Hospital, Okara. On 16.04.2015, Muhammad Aslam SI drafted an application (Exh.PM) and submitted it before the Area Magistrate to obtain permission to associate co-accused Sarfraz in the instant case who had already been arrested in FIR No.395/2014. Upon receipt of the requisite permission, Sarfraz was formally arrested, remanded to judicial custody and an interim report was submitted to the extent of his involvement. Non-bailable warrants for the arrest of appellants Zulfiqar, Afzaal, and Imran were subsequently obtained (Exh.PP, Exh. PQ & Exh. PR) and reports regarding the same were submitted (Exh.PP/1, Exh.PQ/1 & Exh.PR/1). Proclamations against the appellants were issued as Exh.PT,

Exh.PU & Exh.PV, and a report regarding proclaimed offenders was prepared under Section 512 Cr.P.C. The investigation was later taken over by Jalil Ahmad, SI (PW.8), who on 27.12.2016, 06.01.2017, and 16.01.2017, arrested the appellants Zulfiqar Ali, Afzaal, and Imran, respectively. On 08.01.2017, appellant Zulfiqar Ali made a disclosure pursuant to which a .30 bore pistol (P.4) along with three live bullets (P.5/1-3) was recovered and taken into possession through memo (Exh.PG). During the course of investigation conducted by Jalil Ahmad, SI (PW.8), it was concluded that appellants Imran and Afzaal were not involved in the alleged offence. Upon completion of all legal formalities, the Investigating Officer submitted the report under Section 173 Cr.P.C.

4. To substantiate the charge against the appellants and their co-accused, the prosecution examined as many as thirteen witnesses. Dr.Rehana Rashid (PW.1) conducted the post-mortem examination of the deceased, Mst.Rukhsana Bibi on 19.03.2015 and issued the post-mortem report along with the pictorial diagram (Exhs.PA, Exh.PA/1 & PA/2). The ocular account of the occurrence was furnished by the complainant, Maqsood Ahmad (PW.4) and Safdar Ali (PW.10). The investigation of the case was conducted at different stages by Jalil Ahmad SI (PW.8), Muhammad Aslam SI (PW.12) and Zahid Ramzan Inspector (PW.13). The remaining witnesses are of a formal nature. Upon conclusion of the prosecution evidence, the statements of the appellants were recorded under Section 342, Cr.P.C., wherein each incriminating circumstance appearing in the prosecution evidence was put to them. They denied the allegations in toto, claimed innocence, and asserted their false implication. However, they neither opted to make statements on oath in terms of Section 340(2), Cr.P.C., nor did they produce any evidence in defence. Upon culmination of the trial, the learned trial Court convicted and sentenced the appellants as detailed hereinabove, hence the instant criminal appeal and criminal revision.

5. Arguments heard. Record perused.

6. Perusal of the record reveals that the present case emanates from an occurrence which took place on 19.03.2015 at about 2:30 p.m. in Chak Mauza Bibi Pur, situated at a distance of approximately nineteen kilometers from Police Station Satghara. During the said occurrence, Mst.Rukhsana Bibi sustained multiple firearm injuries allegedly inflicted by the appellants, namely Afzaal, Muhammad Imran and Zulfiqar Ali, each armed with .30 bore pistols, while she was returning home from the District Courts, Okara, after getting the mutation of inheritance of her deceased husband, Muhammad Aslam, attested. Allegedly, the incident took place at the instigation of co-accused Sarfraz (since acquitted) and that two unknown accused resorted to aerial firing at the spot. The record further unveils that the matter was reported to the police by the complainant, Maqsood Ahmad (PW.4) through a written application submitted to Ihsan-ul-Haq, ASI (PW.2) at Police Station Satghara at about 4:00 p.m., thereby reflecting a delay of two hours and thirty minutes in the registration of the FIR. Ordinarily, a delay of a couple of hours in a case of murder may not, by itself, be considered fatal. However, in the peculiar facts and circumstances of the present case, such delay assumes significance and casts a shadow of doubt over the prosecution version. It is noteworthy that in the written application (Exh.PE), the complainant specifically mentioned his cell number, however despite the availability of telephonic means and notwithstanding the fact that the distance between the place of occurrence and the police station was nineteen kilometers, the complainant opted to personally visit the police station for lodging the report, leaving behind the dead body of his sister at the place of occurrence in the presence of the alleged eyewitnesses, namely Munir Ahmad (given up) and Safdar (PW.10). Although the complainant later asserted during trial that he was having a motorcycle, on which he and the deceased were travelling, to reach the police station, yet neither was the said motorcycle taken

into possession by the Investigating Officer nor was it produced before him. This omission on the part of the prosecution has resulted in the loss of a material link in establishing the complainant's presence and movement immediately after the occurrence. Moreover, while the FIR was registered on the basis of a written application (Exh.PE), the complainant neither disclosed during investigation nor at trial the identity of the scribe of the said application. Consequently, the authorship, the place of drafting, and the exact time at which it was prepared remained shrouded in mystery throughout the proceedings. It is further observed that the postmortem examination of the deceased was conducted approximately nine hours after the occurrence. Such delay, in the absence of any plausible explanation, adversely reflects upon the prosecution case, particularly with regard to the timing of the FIR and the particulars of the occurrence recorded therein. A careful scrutiny of the record does not reveal any justification for the belated dispatch of police papers to the medical officer for autopsy. In the circumstances, it appears that the intervening period was utilized to deliberate upon, to tailor the prosecution story and to procure the attendance of witnesses. While holding so, I am enlightened by the observation of the Supreme Court of Pakistan expressed in the case reported as Muhammad Ilyas v. Muhammad Abid alias Billa (2017 SCMR 54) which is as under:-

“Post-mortem examination of the dead body of Muhammad Shahbaz deceased had been conducted after nine hours of the incident which again was a factor pointing towards a possibility that the time had been consumed by the local police and complainant party in procuring and planting eye-witnesses and cooking up a story for the prosecution.”

Considering the cumulative effect of the aforementioned circumstances, this Court is compelled to conclude that the FIR does not seem to represent a spontaneous narration of the incident. Instead, it appears to be a document prepared after careful deliberation, containing possible embellishments or fabrications. In light of this, the Court is obliged to scrutinize the prosecution's

evidence with the highest degree of care, caution, and judicial restraint, while adhering to the established principles guiding the evaluation of evidence in criminal law.

7. In the backdrop of what has been discussed above, it is observed that the ocular account of the occurrence was furnished at trial by the complainant, Maqsood Ahmad (PW.4), and Safdar Ali (PW.10), who are admittedly related to the deceased, being her real brother and maternal uncle, respectively. As regards Maqsood Ahmad (PW.4), it has surfaced during cross-examination that he, along with the other private witnesses, is a permanent resident of Thatha Saleemka, Dakhli Mauza Mardani, situated at a distance of about 15/16 kilometers from the place of occurrence. He candidly admitted that neither he nor the other witnesses owned any agricultural land, business premises, or residence in the vicinity of the place of occurrence. It has further been noticed that while deposing before the learned trial Court, the complainant made several material improvements over his earlier version as contained in the written application (Exh.PE). These deviations were promptly confronted to him by the learned defence counsel. In his deposition, he asserted, *inter alia* that accused Zulfiqar fired a shot from a .30 bore pistol which hit the right cheek of Mst.Rukhsana Bibi; accused Imran fired a shot which struck her on the chest near the right arm; Zulfiqar fired successive shots which landed on her abdomen; accused Afzaal fired a shot hitting the right side of her abdomen and accused Imran again fired at her chest near the right arm. He also introduced a new assertion that on 19.03.2015 at about 11:00 a.m., co-accused Sarfraz had attended the Court of Judicial Magistrate, Okara. When confronted with his written application (Exh.PE), none of the aforesaid details found mention therein. In addition to these, several other significant improvements were made by him during his testimony, which were likewise confronted with his earlier version. Given that the entire edifice of the prosecution case substantially rests upon the testimony of Maqsood Ahmad (PW.4),

it is considered appropriate, for proper appreciation of the matter, to reproduce the material improvements introduced by him during cross-examination, which, for the sake of reference and convenience, are set out hereunder:-

“FIR of this case was registered on my written application Ex.PE. I got recorded in my application Ex.PE that Zulfiqar accsued made fire with pistol 30-bore, which landed on the right cheek of Mst.Rukhsana Bibi. Confronted with Ex.PE where it is no so recorded. I did not get recorded in my application Ex.PE that Zulfiqar made fire with his pistol 30-bore which landed underneath of right shoulder. Confronted with Ex.PE where it is so recorded in portion A to A. I got recorded in my application that accused Imran made fire which landed on the chest near the right arm. Confronted with Ex.PE where it is no so recorded. I did not get recorded that second fire was made by Imran accused with his pistol which landed at left buttock of Rukhsana Bibi who fell down. Confronted with Ex.PE, where it is so recorded in portion B to B. I got recorded in my application that Zulfiqar accused made fires one after the other which landed on th abdomen of Mst.Rukhsana Bibi deceased. Confronted with Ex.PE, where it is no so recorded, however, it is recorded that accused Zulfiqar made three repeated fires which landed on the front of abdomen of Rukhsana Bibi. I got recorded in my application that Zulfiqar accused again fired which landed on the chin of Rukhsana Bibi. Confronted with Ex.PE, where the sequence of fires are different. I got recorded in my application that Afzaal accused made a fire which landed on the right side of abdomen. Confronted with Ex.PE where landing of fire on right side of the abdomen is not recorded. I did not get recorded in my application that Afzaal accused made fire which hit Rukhsana Bibi deceased on her left knee. Confronted with Ex.PE where it is so recorded in portion C to C. I did not get recorded in my application that Imran accused made fire with pistol which landed at right ‘Daula’ of Rukhsana Bibi. Confronted with Ex.PE where it is so recorded in portion D to D. I got recorded in my application that Imran accused made a fire which landed on the chest near the right arm. Confronted with Ex.PE where it is not so recorded. I got recorded in my application that on 19.03.2015 at about 11;00 a.m., Sarfraz accused attended the court of learned Judicial Magistrate Okara. Confronted with Ex.PE where the time 11:00 a.m. is not so recorded.”

The foregoing improvements unmistakably demonstrate that Maqsood Ahmad (PW.4) has not adhered to a consistent and truthful version of events. The nature and extent of the embellishments introduced by him during trial proceedings suggest a deliberate attempt to align the ocular account with the medical evidence on record. It is a well-settled principle governing the appraisal of evidence that where a witness deliberately introduces dishonest improvements in order to

strengthen the prosecution case, he thereby undermines his own veracity. A witness who thus pollutes his testimony forfeits the confidence of the Court and renders his evidence unworthy of reliance. Reference in this context may be made to the case reported as *Sardar Bibi and another v. Munir Ahmed and others* (2017 SCMR 344) wherein the Supreme Court of Pakistan has observed as under:-

“.....the improvements and omissions were made by the witnesses in order to bring the case of prosecution in line with the medical evidence. Such dishonest and deliberate improvement and omission made them unreliable and they are not trustworthy witnesses.”

Insofar as Safdar Ali (PW.10) is concerned, although he appeared before the learned trial Court and supported the prosecution version in line with the complainant, yet a closer scrutiny of his testimony renders it equally doubtful. During cross-examination, he admitted that he is a permanent resident of Thatha Saleemka, situated at a distance of about fourteen kilometers from the place of occurrence, and that he neither owns any agricultural land nor has any business or residence in the vicinity of the scene of crime. More significantly, he candidly conceded that he had not made any statement before the police during the course of investigation. When his testimony is juxtaposed with the contents of the written application (Exh.PE) submitted by the complainant Maqsood Ahmad (PW.4), it becomes evident that, as per the said application, Safdar Ali (PW.10) and Munir Ahmad (given up) had reached the spot only after the accused had already inflicted firearm injuries upon the deceased and the two unknown accused had resorted to aerial firing. Thus, the active and detailed role attributed to the appellants by Safdar Ali (PW.10) during trial appears incongruous with the earlier version set out in Exh.PE and does not inspire confidence. In these circumstances, the only plausible inference that can be drawn is that the complainant and other purported eyewitnesses were not present at the crime scene at the relevant time, and their testimonies before the trial Court are

bereft of credibility and fail to meet the standard of proof required in a criminal case.

8. This Court has observed that, according to the prosecution, the complainant, along with Mst.Rukhsana Bibi (deceased), on the fateful day i.e. 19.03.2015 proceeded to the District Courts, Okara for the purpose of sanction of mutation of inheritance in respect of the property of the late husband of Mst.Rukhsana Bibi (deceased) and while returning therefrom, the appellants encountered the complainant and the deceased and, by firing at the deceased, caused her death. However, upon a careful examination of this aspect in light of the record, it emerges that the prosecution has relied upon two revenue documents (Exh.PW), the scrutiny of which discloses that the matter relating to the sanction of mutation about the property of the deceased's husband was not materialized at District Courts, Okara rather it was passed in Jalsa-e-Aam on 19.03.2015 in favour of Rukhsana Bibi on the basis of Rapt entered in Roznamcha Waqiat (Daily Diary of Events) on 14.03.2015. It is pertinent to note that sanction of mutation through Jalsa-e-Aam is a recognized legal and traditional procedure under the West Pakistan Land Revenue Rules, 1968, whereby a revenue officer approves changes in land ownership records in the presence of the local residents and the parties concerned, at the village where the land is situated. On 19.03.2015, during the Jalsa-e-Aam, Rukhsana Bibi, identified by Amir Saleem, Advocate, and Maqsood Ahmad (PW.4) appeared and verified the Shajra Nasb prepared by the Patwari consequent upon the demise of her husband. Besides that, Amir Saleem, Advocate who as per revenue document identified the deceased before the revenue officer was an important witness but he too was neither produced before the trial court nor at investigative phase. In these circumstances, the prosecution's assertion that the deceased and the complainant had proceeded to the District Courts, Okara for the said purpose cannot be sustained. Similarly, during cross-examination, the complainant deposed that

Mst.Rukhsana Bibi left her residence at approximately 8:00 a.m. and arrived at District Okara at around 9:00 a.m., whereas the mutation was sanctioned at 11:00 a.m. He further stated that the distance from the District Courts to the place of occurrence could be covered within approximately forty-five minutes but the incident took place at 2:30 p.m. and there is no justification available in the entire evidence where the intervening time was spent by the deceased and the complainant. This part of evidence of the complainant also casts serious doubt about the timing of the occurrence as alleged by the prosecution.

9. This Court has also taken note of another significant aspect arising from the prosecution evidence, which casts serious doubt on the veracity of the prosecution's case. Muhammad Aslam SI (PW.12) visited the spot on 19.03.2015, the same day where the complainant, Maqsood Ahmad (PW.4) appeared before him and filed an application seeking correction of the firearm injuries sustained by the deceased. This conduct indicates that the complainant had, on the very day of the incident, disassociated himself from the contents of the FIR. Furthermore, Muhammad Aslam SI (PW.12), despite conducting a spot inspection, did not secure any crime empties, which undermines the prosecution's theory that the three appellants, along with two unknown accused made heavy firing at the spot from their respective .30 bore pistols. A perusal of the site plan (Exh.PJ) indicates that the deceased, Rukhsana Bibi, sustained the first firearm injury at point "A" at the hand of the appellant Zulfiqar. She is alleged to have then run to point "A-1," where she received the remaining firearm injuries, and it is from this location that blood-stained earth was collected by Muhammad Aslam SI (PW.12). However, in his cross-examination, Muhammad Aslam SI (PW.12) admitted that he neither observed nor collected any blood-stained earth at point "A" nor did he recover any crime empties from that location. He further stated that, on his initial visit, he found the deceased at point "A-1," along the road leading to Ihata Karam Chand, and did

not notice any blood trail connecting point “A” to point “A-1.” Given its significance, the relevant excerpt of the cross-examination of Muhammad Aslam SI (PW.12) is reproduced hereunder:-

“I did not observe any blood stained earth at point “A” and similarly I had not taken into possession any blood stained earth from point “A”. I had also not found any crime empty from point “A”. At the time of my first visit I found the dead body lying at point A-1, a road leads towards Ihata Karam Chand. It is correct that I had no observed any blood trail from point “A” to point A-1 at the place of occurrence.”

The absence of trail from point “A” to “point-A1” further creates dents in the veracity of the prosecution case regarding the place of occurrence.

10. It has further been observed by this Court that during the course of cross-examination, the complainant Maqsood Ahmad (PW.4) admitted that at the time of the occurrence a mule belonging to one Yasin also sustained a firearm injury. He further conceded that said Yasin got his statement recorded before the Investigating Officer, wherein he asserted that the occurrence was perpetrated by a single unknown accused and that at the relevant time he alone was present at the place of occurrence, with no other person witnessing the incident. This aspect of the matter assumes considerable significance, as it introduces a version materially at variance with the prosecution narrative. For proper appreciation, the relevant excerpt from the cross-examination of Maqsood Ahmad (PW.4) is reproduced hereunder:-

“The owner of the mule namely Yasin also joined the investigation and took the stance before the I.O that the occurrence was committed by only one unknown person. It is correct that Yasin stated before the police that only he was present at the alleged place and time of occurrence and no one else witnessed the same.”

Despite the significance of said Yasin, the prosecution withheld him from the witness box and failed to examine him during trial. The non-production of such a pivotal witness, who was admittedly present at the crime scene and whose version as elicited during cross-examination, was at variance with the prosecution narrative,

cannot be lightly brushed aside. The deliberate omission to produce him compels this Court to draw an adverse inference that, had he been examined, his testimony would not have advanced the case of the prosecution. In arriving at this conclusion, the Court is fortified by Illustration (g) to Article 129 of the Qanun-e-Shahadat Order, 1984, which postulates that evidence which could be and is not produced would, if produced, be unfavourable to the party withholding it:-

“129. Court may presume existence of certain facts. The Court may presume the existence of any fact, which it thinks likely to have happened, regard being had to the common course of natural events, human conduct and the public and private business, in their relation to the facts of the particular case.

Illustrations

The court may presume:

(g) that evidence which could be and is not produced would, if produced, be unfavourable to the person who withholds it.”

The Supreme Court of Pakistan in the case of Muhammad Rafique, etc. v. State & others (PLJ 2011 Supreme Court 191) held as under:-

“that if any party withholds the best piece of evidence then it can fairly be presumed that the party had some sinister motive behind it. The presumption under Article 129 (g) of Qanun-e-Shahadat Order can fairly be drawn that if PW would have been examined, his evidence would have been unfavourable to the prosecution”.

In another case reported as Lal Khan v. The State (2006 SCMR 1846), the Supreme Court while dealing with the omission of the prosecution in not producing a material witness held as under:-

“The prosecution is certainly not required to produce a number of witnesses as the quality and not the quantity of the evidence is the rule but non-production of most natural and material witnesses of occurrence, would strongly lead to an inference of prosecutorial misconduct which would not only be considered a source of undue advantage for possession but also an act of suppression of material facts causing prejudice to the accused.”

Furthermore, it is observed that during the course of investigation conducted by Jalil Ahmad, SI (PW.8), the appellants Afzaal and Imran were found to have no involvement in the alleged occurrence, and no incriminating material was recovered from

them. Remarkably, this opinion of the Investigating Officer was not challenged by the complainant Maqsood Ahmad (PW.4) before the higher police authorities. Although the complainant Maqsood Ahmad (PW.4) filed private complaint (Exh.PX), yet the same was consigned to record vide order dated 19.06.2018 passed by learned ASJ, Okara on his statement made on the same day that he did not want to produce evidence in the private complaint. Similarly, the complainant, Maqsood Ahmad (PW.4) in his FIR (Exh.PE/1), specifically alleged that the occurrence had taken place at the abetment of co-accused Sarfraz (since acquitted). Although the complainant subsequently instituted Criminal Appeal No.17381 of 2020, challenging the acquittal of Sarfraz Ahmad but the same was dismissed due to non-prosecution by the learned Division Bench of this Court vide order dated 16.09.2025. The complainant also stated in the FIR that two unknown accused had engaged in aerial firing at the spot. However, the identity of these individuals remained undisclosed throughout the investigation as well as the trial. The cumulative effect of the above facts demonstrates that the alleged occurrence was not witnessed by anyone. It further indicates that the FIR was registered against the appellants pursuant to a story concocted and fabricated after securing the attendance of the complainant, Maqsood Ahmad (PW.4) and other alleged eyewitnesses.

11. The medical evidence in the present case was furnished by Dr.Rehana Rashid (PW.1), who while deposing before the learned trial Court stated that she received the police papers for conducting the postmortem examination of the deceased on 19.03.2015 at about 11:30 p.m. and immediately proceeded to conduct the examination. Notably, she did not specify the exact time at which the postmortem examination was conducted. It is reiterated that the alleged occurrence took place at about 2:30 p.m., whereas the police papers were delivered to the doctor only at 11:30 p.m., thereby resulting in a delay exceeding nine hours before the postmortem was performed. This interregnum raises the

possibility that the period was utilized by the police to procure the attendance of witnesses and to fabricate the prosecution story. Further, the material improvements introduced by the complainant, Maqsood Ahmad (PW.4), during his testimony compel the Court to observe that reliance solely on the medical evidence to convict the appellants would not be tenable. During the postmortem examination, Dr.Rehana Rashid (PW.1) observed blackening around the entry wounds of injuries Nos. 1-A, 2-A, 3-A, 5, 6-A, and 7-A. On cross-examination, she opined that such blackening could only result when the firearm discharge occurs from a distance of less than three feet. In this context, a comparison with the site plan (Exh.PJ) reveals that the deceased was initially positioned at Point-A and from point-B Zulfiqar fired a shot at the deceased which hit her at right shoulder, while the distance between point-A to point-B is 5-feet. It is further observed from site plan (Exh.PJ) that after the receipt of first injury the deceased ran and reached at point-A' while points B-1, B-2, and B-3 denote the locations from which the appellants, Zulfiqar, Imran, and Afzaal, respectively, allegedly fired from their .30 bore pistols. The distances between points A-1 to B-1, A-1 to B-4, and A-1 to B-3 are shown to be approximately four feet. Under these circumstances, the blackening observed around the entry wounds could not have occurred if the shots had been fired from the positions described in the site plan. This observation finds corroboration in Modi's Medical Jurisprudence, which establishes that blackening around firearm entry wounds is possible only when a shot is fired from a distance of less than three feet. In this regard, reliance is placed upon the case reported as Amin Ali and another v. The State (2011 SCMR 323) wherein the Supreme Court of Pakistan gave the following observation:-

“All the three witnesses deposed that the deceased had received three injuries, but the Medical Officer found six injuries on the person of the deceased. One of them had blackening. None of the witnesses deposed that any of the appellants had caused the injuries from a close range but on the contrary in the site plan the place of firing has been shown 8 feet away from the deceased. Thus from such a distance injury with blackening

cannot be caused as it can be caused from a distance of less than 3 feet as per Modi's Medical Jurisprudence."

In another case reported as Muhammad Zaman v. The State and others (2014 SCMR 749), the Supreme Court of Pakistan, while dealing with the matter in issue, held as under:-

"Let us assume that F.I.R., whose maker passed away before his examination in the court, cannot be looked into for any purpose yet the prosecution version neither rings true nor inspires confidence when a firearm entry wound found on the person of P.W. No.5 caused by a shot fired from a distance of 12 feet was accompanied by blackening which is not possible beyond 3 feet. Especially when it has never been the case of the P.W. that any of the assailants fired at him from a close or contact range. In Modi's Medical Jurisprudence and Toxicology (21st Edition) at page 354, it has been held that "Blackening is found, if a fire-arm like shot-gun is discharged from a distance of not more than 3 feet"."

In the circumstances noted above, the medical evidence is manifestly at variance with and contradicts the ocular testimony provided by Maqsood Ahmad (PW.4) and Safdar Ali (PW.10).

12. Although a .30 bore pistol was recovered at the instance of appellant Zulfiqar Ali and forwarded to the PFSA, yet the PFSA report (Exh.PDD) merely states that the weapon was in working condition. The report does not establish any connection between the firearm and the commission of the alleged offence and, accordingly, is of no substantive assistance to the prosecution. With regard to the alleged motive, the FIR asserts that the deceased, Mst.Rukhsana Bibi's husband, Muhammad Aslam, had passed away, and that the accused, Zulfiqar Ali and others, being his step-brothers, sought to usurp his property from the deceased. It was further alleged that upon the sanction of the mutation of inheritance in favour of Mst.Rukhsana Bibi, the accused committed her murder. A careful scrutiny of the record, however, reveals that while the complainant, Maqsood Ahmad (PW.4) in his examination-in-chief adhered to the motive as set forth in the FIR (Exh.PE/1), he admitted during cross-examination that Muhammad Aslam, the husband of his deceased sister, was only a step-brother of the accused Zulfiqar Ali and Sarfraz, and that they were not entitled to inherit any portion of Muhammad Aslam's

estate and the legal heirs were solely the deceased, Rukhsana Bibi, and her daughters. In these circumstances, the appellants, being alien to the inheritance of Muhammad Aslam, had no conceivable motive to commit the alleged offence. The purported motive articulated in the FIR, therefore, appears to be a contrived and overzealous attempt to strengthen the prosecution case.

13. For the reasons detailed above, it is manifest that the prosecution has badly failed to discharge the onerous burden cast upon it to establish the guilt of the appellants beyond reasonable doubt. The evidence adduced, when appraised in accordance with the settled principles governing criminal adjudication, does not inspire the requisite confidence to sustain appellants' conviction. It is a cardinal tenet of criminal jurisprudence that the benefit of every reasonable doubt must be extended to the accused as a matter of right and not of grace. In the instant case, the doubts arising from the prosecution evidence are real, substantial, and material, and cannot be brushed aside as the same are not speculative or artificial. In consequence, the appellants are entitled to acquittal. Accordingly, Criminal Appeal No.17383-J of 2020 is hereby allowed. The conviction and sentence awarded to appellants Afzaal, Muhammad Imran, and Zulfiqar Ali are set aside and they are acquitted of the charges. The appellants in custody shall be released forthwith, unless required to be detained in connection with any other matter. As a necessary corollary, Criminal Revision No.17382 of 2020, being without substance, is dismissed.

(ABHER GUL KHAN)
JUDGE

APPROVED FOR REPORTING

JUDGE

The judgment was announced
on 13.02.2026, dictated,
prepared, and signed
on 23.02.2026
Najum*